

A son grew impatient with his father The son wanted to take over his father's business, but he did not wish to wait for Dad to pass away. So the son opened his own business and actually competed with his father's.

Mr. Andrews quickly countered:

My son signed a noncompete contract with me.... Everything in a family is based on trust, isn't it?

The participants seemed to think about this statement for a moment. Perhaps Mr. Andrews was having some second thoughts about his plan.

Shortly after Mr. Andrews made this comment, he revealed that his children were the executors of his estate. Mr. Harvey then raised his hand and asked if he could respond. We were delighted. Mr. Harvey was the oldest and wealthiest respondent in the group. He began by noting the importance of facilitating harmony among one's heirs. And, according to him, the choice of executor(s) of an estate was critical in this regard. Mr. Harvey had served as executor or co-executor of several estates. He understood full well that being an executor was a difficult task and that there was often animosity among executors and the heirs of estates. For this reason, he had carefully chosen the executors of his estate:

I have two children. They are close to each other. They can settle my estate between them.... But they will do it along with my attorney.... The children and my attorney are executors of my estate. I put the attorney in just to keep the balance.... You know when money's involved what can happen. I want to keep good relations, ... but good relationships may deteriorate at the last moment without an experienced professional.

Mr. Andrews then spoke. He asked, with a hint of a challenge:

Are you really going to use someone from outside the family as an executor?